

25STCV21530 25STCV21530

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Case Number: 25STCV21530 Hearing Date: June 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

24, 2026 TRIAL DATE: May 8, 2028

CASE: Los Angeles County Metropolitan Transportation Authority v. Ramon

Montero Esqueda, et al.

CASE NO.: 25STCV21530

MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING

PARTY: Cross-Defendant Rene Honer

RESPONDING

PARTY: No opposition

In July 2023, Rene Honer ("Honer") was driving a vehicle in the course and scope of her employment with plaintiff Los Angeles County Metropolitan Authority ("Metro") when a vehicle owned and/or operated by defendants Ramon Montero Esqueda ("Esqueda") and Margarita Montero ("Montero") (collectively, "Defendants") collided with Honer's vehicle.

Honer sustained injuries and made a demand for compensation payments from Metro. Metro paid Honer's claims

and brought this action against Esqueda and Montero for reimbursement of workers compensation benefits. Defendants thereafter answered Metro's complaint and filed a cross-complaint against Honer. In the cross-complaint, Defendants seek to recover from Honer any damages that are awarded against Defendants on Metro's complaint.

I. BACKGROUND

On July 22, 2025, Metro commenced this action against Defendants.

On August 26, 2025, Defendants filed an Answer to Metro's Complaint.

On September 23, 2025, Defendants filed a Cross-Complaint against Honer for indemnity, comparative contribution, and declaratory relief.

On May 26, 2026, Honer filed this motion for judgment on the pleadings.

The motion is unopposed.

II. LEGAL STANDARD

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." [Citations.] (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057 1064.) The court must assume the truth of all properly pleaded material facts and allegations, but not contentions or conclusions of fact or law. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738.) "A judgment on the pleadings in favor of the defendant is appropriate when the complaint fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 438(c)(3)(B)(ii).)" (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.) "Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." [Citation.] (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) "The common law ground for a motion for judgment on the pleadings is identical to the statutory ground[.]" (Korchemny v.

Piterman (2021) 68 Cal.App.5th 1032, 1055.) Allegations are to be liberally construed. (Code Civ. Proc., § 452.)

If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (Code Civ. Proc., § 438(h)(1).) “Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

III. DISCUSSION

Honer argues Defendants’ crossclaims for indemnity, comparative contribution, and declaratory relief are barred by Labor Code sections 3864 and 3601. The argument is meritorious. Labor Code section 3864 provides:

“If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.”

Labor Code section 3601 provides, in relevant part:

“In no event, either by legal action or by agreement whether entered into by the other employee or on his or her behalf, shall the employer be held liable, directly or indirectly, for damages awarded against, or for a liability incurred by the other employee under paragraph (1) or (2) of subdivision (a).”

(Lab. Code, § 3601(b).)

In short, these statutes prevent a third party sued by an employee or employer from shifting liability back to the employer through indemnity, contribution, reimbursement, whether directly or indirectly. Further, the Cross-Complaint does not plead any exceptions to this limitation. (See Lab. Code, § 3864.) The crossclaims fail as a matter of law. Defendants, having not filed an opposition, does not present any argument supporting a different conclusion.

IV. CONCLUSION

The motion for judgment on the pleadings is GRANTED. Leave to amend is DENIED.

Moving party to give notice, unless waived.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court